

Legal documents — drafts for counsel

All five are drafts prepared by the principal with AI assistance. **None is legal advice.** Bracketed fields [LIKE THIS] need a decision; blocks marked [COUNSEL] are specific questions.

Document	Pages	Priority
MSA.md	~6	Review first. §3 (no outcome guarantee), §9 (measurement data rights), §12 (liability cap) are the clauses that matter.
CASL-screening-procedure.md	~3	Review first. Highest legal exposure in the business — CAD \$10M per violation, director liability.
SOW-template.md	~2	Mostly scope mechanics.
privacy-policy.md	~3	Largely standard; §3 needs a decision on email tracking.
website-terms.md	~3	Largely standard; §2 disclaims the free report.

Suggested instruction to counsel

*We are a Manitoba corporation selling marketing measurement and content services to United States business customers, remotely, with no US presence. Please review these five drafts. Our three concerns, in order: 1. **Outcome-guarantee exposure.** We measure and try to influence third-party AI systems we do not control. MSA §3 is meant to foreclose any claim that we promised a result, including claims founded on pre-contract statements. 2. **CASL.** We send commercial email from Canada to US recipients and rely on the foreign-state exemption in ECPR para. 3(f). Please confirm the analysis and whether our country screen supports the required reasonable belief. 3. **Rights in aggregated measurement data.** MSA §9 lets us publish anonymised aggregate research built from client and prospect measurements. This is a core business asset; please confirm it is adequately drafted and that it survives termination. Also of note: jurisdiction (MSA §16) — US clients often resist Manitoba, and we would like a fallback position.*

Sequencing

Send the MSA, the CASL procedure, and the compliance policy (./business-plan/COMPLIANCE-POLICY.md) together — they cross-reference, and reviewing them as a set costs less than three engagements. The SOW, privacy policy, and terms can follow, since unpaid pilot work carries no contract risk.